
BEYOND THE CHATBOT: GROUNDING AI IN THE LAW

An MCLE Program of the Alameda County Bar Association

Presented by John Kelly

Wednesday, September 9, 2026, 12:00 to 1:30 p.m., by Zoom

MCLE Credit: 1.5 hours participatory credit: 1.0 hour Technology in the Practice of Law and 0.5 hour Legal Ethics. The Alameda County Bar Association is the provider.

PROGRAM DESCRIPTION

AI hallucination in legal research is not a technology problem; it is a process problem. This 90-minute program demonstrates what a reliable verification process looks like in practice, and equips attendees with electronic resources to implement it immediately.

The program opens with where courts and practitioners stand right now: judicial AI pilot programs are already drafting tentative rulings in California, and practitioners appearing before those courts need to understand what that means for their practice. The ethics portion (0.5 hour) addresses the obligations triggered when a practitioner uses AI-generated research or discovers hallucinated content in work product, including the duty of candor to the tribunal, the duty of confidentiality as it applies to what a practitioner types into an AI tool, and the practitioner's independent obligation to verify before filing. It closes with the disclosure landscape as of September 2026: the six counties with AI local rules, Senate Bill 574 awaiting the Governor's signature, and the State Bar's proposed AI comments to the Rules of Professional Conduct.

The technology portion (1.0 hour) works through progressively harder research problems: grounding AI output in statutory text using the California Legislature's own bulk data; conducting a 58-county comparative analysis of local rules (a real project delivered to the Sonoma County Civil Bench-Bar Committee, presented here as a case study in AI-assisted legal research methodology); applying the same discipline to the smallest of matters; and verifying case law citations through structured prompts that integrate with Westlaw and other research platforms.

Attendees will receive electronic links to the complete text of all 29 California codes in machine-readable format, all 58 county local rules in a structured format suitable for AI retrieval, and a small number of concise, tested prompts for case law verification, citation checking, and document-grounded research, including a prompt for statutory research grounded in the Probate Code.

AGENDA

12:00 to 12:30. Legal ethics (0.5 hour): where courts and practitioners stand; six duties and their new failure modes (competence, confidentiality, candor, supervision, fees, communication); where the data goes; courts and disclosure.

12:30 to 1:20. Technology in the practice of law (1.0 hour, with questions): the four types of authority; grounding in statutes; the 58-county local rules survey; the smallest-scale case study; case law verification; grounding in the practitioner's own documents; the harness; the vendor question; seven things to do this week; what you take home.

1:20 to 1:30. Questions.

LEARNING OBJECTIVES

Legal ethics component:

1. Identify the professional obligations triggered when a practitioner uses AI-generated research or discovers hallucinated content in work product, including the duty of candor to the tribunal (Bus. & Prof. Code § 6068(d); Cal. Rules of Prof. Conduct, rule 3.3), the duty of competence (rule 1.1), the duties of supervision (rules 5.1, 5.3), and the limits on billing for AI-assisted work (rule 1.5), as addressed in the State Bar's Practical Guidance for the Use of Generative Artificial Intelligence in the Practice of Law (2026).
2. Apply the duty of confidentiality (rule 1.6; Bus. & Prof. Code § 6068(e)(1)) to the practical question of where client information goes when a practitioner uses a consumer chatbot, a vendor add-in, or an API-based tool, including vendor retention, litigation holds reaching the vendor, and zero data retention terms.
3. Describe the current disclosure landscape for AI use in California courts, including the six counties with AI local rules, the pending Senate Bill 574, the State Bar's proposed AI comments to the Rules of Professional Conduct, and a practical protocol for disclosing a firm's AI practices to the court before a problem arises.

Technology component:

4. Understand how courts are currently using AI, including judicial pilot programs for drafting tentative rulings, and what that means for practitioners appearing before those courts.
5. Apply grounding techniques to ground AI research in authoritative primary sources, including California statutes, state and federal case law, local rules, and the source documents in a practitioner's own case file, rather than relying on the model's training data.
6. Evaluate AI-generated analytical work product critically, using the 58-county local rules survey as a case study in AI-assisted research methodology: what the model contributes (scope, structure, comprehensive coverage across jurisdictions) and where attorney judgment remains indispensable (accuracy, preemption analysis, interpretation of existing practices).
7. Implement a structured verification process for case law, from basic existence checks

through headnote verification to automated linting against a closed corpus, using prompts designed to integrate with Westlaw and other research platforms practitioners already use.

WRITTEN MATERIALS

The written materials for the program consist of the following documents:

1. Presentation. The full slide deck for the program, 23 slides, with the ethics segment first.
2. Take-Home Prompts. A memorandum of tested prompts for citation checking, case law verification, and document-grounded research, with a prompt for statutory research grounded in the Probate Code and links to the California codes and local rules repositories.
3. Local Rules Survey. The 58-county comparative analysis of California civil local rules, presented as a case study in AI-assisted legal research methodology.
4. Case Study: AI in a Traffic Court Matter. A worked example applying the same tools and verification discipline to the smallest of matters, from statutory research through form preparation and filing, concluded with a not-guilty decision, with the underlying documents as exhibits.

Ethics segment handouts:

5. Court Disclosure Kit. Three instruments for adaptation: a case management statement attachment disclosing a firm's AI practices once per case, an optional per-filing AI disclosure certificate, and an ex parte compliance note, with usage notes on categorical rather than narrative disclosure.
6. County Compliance Matrix: AI Local Rules. The six California counties with AI provisions in their local rules (Santa Clara, San Benito, San Mateo, Napa, Sacramento, Mendocino), what each requires, which impose a disclosure duty, the statewide layer, and the pending developments to monitor, verified against the July 2026 rule texts.
7. Where the Data Lives. A memorandum on where client information goes in each of the three ways of working with AI (web chat, Word add-ins, and agentic harnesses), what zero data retention terms do and do not cover, and which policy controls carry the load.

Documents 1 through 7 are collected at: <https://blog.law-kelly.com/p/acba-presentation-materials.html>

Documents 5 through 7 are drawn from the Firm AI Use Policy Package, which also includes a model firm AI use policy, a staff quick reference checklist, and product-by-product policy cards:

<https://blog.law-kelly.com/p/firm-ai-use-policy-package.html>

SPEAKER

John Kelly practices trust and estate litigation, probate administration, and civil litigation in Sonoma. He has integrated AI tools into his legal workflow, including research, drafting, document analysis, and practice management. The techniques presented in this program are drawn from that integration, including a statutory grounding pipeline he built and maintains on GitHub, a 58-county local rules analysis delivered to the Sonoma County Civil Bench-Bar Committee, and case law verification backed by few-shot prompting. He presented on AI for the Sonoma County Civil Bench-Bar Committee in March 2026, for the Sonoma County Bar Association in June 2026, and for the Sonoma County Counsel's Office in July 2026. John earned his J.D. from UC Berkeley in 2002 and his B.A. from UCLA in 1997. Before becoming an attorney, he worked as a web developer. He served on the SCBA Board of Directors from 2020 to 2024 as chair of the Business and Intellectual Property Law Section.